

INTERNATIONAL COURT OF JUSTICE

**LEGAL CONSEQUENCES OF THE SEPARATION OF THE
CHAGOS ARCHIPELAGO FROM MAURITIUS IN 1965**

**(REQUEST BY THE UNITED NATIONS GENERAL
ASSEMBLY FOR AN ADVISORY OPINION)**

WRITTEN STATEMENT

**THE UNITED KINGDOM OF GREAT BRITAIN AND
NORTHERN IRELAND**

15 FEBRUARY 2018

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CHAPTER I

INTRODUCTION

- 1.1 The United Kingdom of Great Britain and Northern Ireland ('United Kingdom') submits this Written Statement, in accordance with the Court's Order of 14 July 2017¹, so as to furnish information on the questions submitted to the Court in General Assembly resolution 71/292, adopted on 22 June 2017, and to assist the Court.
- 1.2 There is a longstanding bilateral dispute between the United Kingdom and the Republic of Mauritius ('Mauritius') over the Chagos Archipelago, in particular as to sovereignty. This is the central issue behind the Request for an advisory opinion. Mauritius has long sought to establish the contentious jurisdiction of an international court or tribunal, including the International Court of Justice, with respect to its sovereignty dispute with the United Kingdom. Most recently, Mauritius has sought to have precisely the same disputed issues that are now brought to the fore in the Questions asked in the current Request considered in arbitral proceedings brought against the United Kingdom under the United Nations Convention on the Law of the Sea (hereafter, the *Chagos Arbitration*)². It is only after having failed in securing jurisdiction and/or obtaining the answers that it wished, that Mauritius has presented the dispute before the General Assembly as a matter of decolonization.
- 1.3 It does not appear possible (or intended) for the Court to engage with the Request without making determinations on or directly concerning the longstanding bilateral dispute. Unless that is somehow incorrect, the United Kingdom's position is that the Court should exercise its discretion and decline to answer the Request for reasons of judicial propriety. In particular, "to give a reply would have the effect of circumventing the principle that a State is not obliged to allow its disputes to be submitted to judicial settlement without its consent"³.

¹ *Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965 (Request for an Advisory Opinion)*, Order of 14 July 2017, paras 1 and 2.

² *Chagos Marine Protected Area Arbitration (Mauritius v United Kingdom)* ('*Chagos Arbitration*'). See further Chapter VI below, in particular as to the Award dated 18 March 2015 (**UN Dossier No. 409**).

³ *Western Sahara, Advisory Opinion, I.C.J. Reports 1975*, p. 12, at p. 25, paras. 32-33, referring to *Interpretation of Peace Treaties, Advisory Opinion, First Phase, I.C.J. Reports 1950*, p. 65, at p. 71.

- 1.4 Even if this were a suitable matter for an advisory opinion, and it is not, Mauritius cannot get around the basic fact that its elected representatives agreed to the detachment of the Chagos Archipelago⁴ in the years leading up to independence, and likewise that Mauritius subsequently reaffirmed its consent post-independence. It was only after many decades that Mauritius came up with detailed legal argument – in particular in the contentious proceedings brought against the United Kingdom in the *Chagos Arbitration*⁵ – to the effect that the consent given in 1965 to detachment (the 1965 Agreement⁶) was not valid due to duress or other reasons. Moreover, as an entirely separate matter, the rules of customary international law that Mauritius now relies upon did not exist at the relevant time, i.e. in the mid-1960s.
- 1.5 The Request also refers in its Question (b) to the Chagossians, albeit (notably) only those of Mauritian origin⁷. The United Kingdom fully accepts that it treated the Chagossians very badly at and around the time of their removal and it deeply regrets that fact. The United Kingdom likewise regrets not putting before the United Nations in the 1960s a complete picture as to the number of second and third generation inhabitants of the Chagos Archipelago once the relevant facts were known to it.
- 1.6 It is nonetheless the case that the legal claims of the very great majority of the Chagossians in Mauritius to compensation and/or resettlement have been settled pursuant to the 1982 Agreement with Mauritius and the multiple individual payments that followed. As the European Court of Human Rights recognised in its 2012 Decision, receipt of such payment has resulted in a full and final settlement and renunciation of all such claims, including with respect to resettlement⁸. The 1982 Agreement did not, however, mark the end of the United Kingdom’s consideration (on a voluntary basis)

⁴ The term ‘Chagos Archipelago’ is used in this Written Statement to refer to the islands that now form the British Indian Ocean Territory, which under British law is a British Overseas Territory. Use of the term ‘Chagos Archipelago’ and the related term ‘Chagossian’ has no implications for the legal status of the islands or the nationality of the Chagossians (sometimes also referred to as *Ilois*).

⁵ See further Chapter VI below.

⁶ The “1965 Agreement” was defined in the *Chagos Arbitration* as: “The agreement between the United Kingdom and the Mauritius Council of Ministers in 1965 to the detachment of the Chagos Archipelago.” The formation of the 1965 Agreement is discussed in some detail in Chapter III below.

⁷ There are Chagossians resident in the United Kingdom and in the Seychelles.

⁸ See further under Chapter IV below, including with respect to the 1982 Agreement.

of the resettlement of the Chagossians. Such was considered most recently in great detail in 2012-2016, but was ultimately rejected on grounds of feasibility, ongoing defence and security interests and cost to the United Kingdom taxpayer. Instead, the United Kingdom committed to a package of approximately £40 million to support improvements in the livelihoods of Chagossians in the communities where they now live.

- 1.7 The present Chapter describes the process leading to the current Request for an advisory opinion (General Assembly resolution 71/292) (**Section A**). It then looks at the main issues before the Court in light of the Questions that have been asked in the Request (**Section B**), that is to say, first and foremost, whether the Court should exercise its discretion so as not to respond to the Request ((i))⁹; and as a secondary matter, and whilst not in any way accepting their suitability for consideration, the issues that arise on the substance of the two Questions, should the Court decide to respond notwithstanding the strong arguments against this ((ii)). Lastly, this Chapter sets out the organisation of this Written Statement (**Section C**).

A. Process leading to the Request for an advisory opinion

- 1.8 On 17 May 2016, the then Prime Minister of Mauritius, Sir Anerood Jugnauth, announced to the Mauritian Parliament that if the United Kingdom did not, by the end of June 2016, agree a precise date by which “the Chagos Archipelago be returned by the United Kingdom to the effective control of Mauritius”, Mauritius would “take appropriate action at the international level, including at the United Nations”¹⁰.
- 1.9 On 14 July 2016, Mauritius wrote to the Secretary-General requesting the inclusion in the provisional agenda of the seventy-first session of the General Assembly of an item entitled “*Request for an advisory opinion of the International Court of Justice on the*

⁹ The United Kingdom has refrained from choosing a person to sit as a judge *ad hoc* in these proceedings, though it reserves the right to do so were Mauritius to choose a judge *ad hoc*. This is entirely without prejudice to the United Kingdom’s position that for the Court to give an opinion in response to the present Request would be a circumvention of the fundamental principle of international law that a State cannot be required to submit its legal disputes to an international court or tribunal without its consent.

¹⁰ Mauritius Prime Minister Sir A Jugnauth Speech, Mauritian Parliamentary Records, 17 May 2016 (**Annex 1**).

legal consequences of the separation of the Chagos Archipelago from Mauritius in 1965”, and enclosed an explanatory memorandum¹¹.

1.10 The General Committee recommended that the proposed agenda item be included on the agenda of the seventy-first session of the General Assembly on 16 September 2016, on the understanding that there would be no consideration of the item by the General Assembly before June 2017, and that thereafter it might be considered upon notification by a Member State¹². In other words, it would not be discussed for some eight months, until June 2017, so that the States directly concerned (Mauritius and the United Kingdom) could resolve the matter bilaterally¹³. The General Assembly adopted this recommendation at its second meeting on 16 September 2016¹⁴.

1.11 Following three rounds of bilateral talks, on 1 June 2017 Mauritius wrote to the President of the General Assembly, saying that:

In accordance with your expectations, Mauritius has engaged in good faith in talks with the United Kingdom. However, these talks have not been successful. Mauritius has therefore no choice but to ask for the consideration of item 87 by the General Assembly at the earliest date possible.¹⁵

1.12 Upon receipt of Mauritius’ request, the President of the General Assembly convened a plenary meeting for 22 June 2017¹⁶. In the period leading up to the meeting of the Assembly, Mauritius circulated various lobbying documents to UN Member States,

¹¹ Letter dated 14 July 2016 from the Permanent Representative of Mauritius to the United Nations to the Secretary-General (A/71/142 of 14 July 2016) (**UN Dossier No. 1**).

¹² Report of the General Committee, “Organization of the seventy-first regular session of the General Assembly, adoption of the agenda and allocation of items” (A/71/250 of 14 September 2016), para. 73 (**UN Dossier No. 2**).

¹³ This was explained by the representative of Congo, when he introduced the draft resolution on 22 June 2017: “The item was included by consensus by the General Assembly on its agenda following an understanding between Mauritius and the United Kingdom, facilitated by the President of the General Assembly, to defer, at the request of the United Kingdom, the consideration of the item until June 2017 in order to allow time to the concerned delegation to reach a solution on the completion of the decolonization of Mauritius. Unfortunately, there has been no progress in this discussion since neither party wished during the talks to focus on the central issue of decolonization, which is so essential to the successful outcome of the process.” General Assembly, verbatim record, 71st Session, 88th Plenary Meeting, Thursday, 22 June 2017, 10 a.m. (A/71/PV.88), p. 5 (**UN Dossier No. 6**).

¹⁴ General Assembly, verbatim record, 71st Session, 2nd Plenary Meeting, Friday, 16 September 2016, 3 p.m. (A/71/PV.2), p. 6 (**UN Dossier No. 3**).

¹⁵ Letter dated 1 June 2017 from the President of the General Assembly addressed to all Permanent Representatives and Permanent Observers to the United Nations (**UN Dossier No. 4**).

¹⁶ *Ibid.*

from which the bilateral nature of the dispute is readily apparent, and likewise Mauritius' aim to use the advisory opinion jurisdiction in order to further its claim to sovereignty over the Chagos Archipelago¹⁷.

- 1.13 On 22 June 2017, a draft resolution, drafted by Mauritius¹⁸, was introduced by Congo (on behalf of the States Members of the United Nations that are members of the Group of African States)¹⁹. In the brief debate prior to the vote, Mauritius' aim was once again made clear. In introducing the draft resolution on behalf of the African Members, Congo said that the purpose of the request for an advisory opinion was to enable Mauritius "to exercise its full sovereignty over the Chagos Archipelago"²⁰. The spokesperson for the Non-Aligned Movement said that Mauritius was "committed to taking all measures necessary to affirm the territorial integrity of the Republic of Mauritius and its sovereignty over the Chagos Archipelago"²¹.
- 1.14 Following a brief debate, the draft resolution was adopted without change, as resolution 71/292 of 22 June 2017²². It was adopted by a recorded vote: 94 votes in favour²³, 15

¹⁷ Letter from Permanent Mission of the Republic of Mauritius to the United Nations, 5 June 2017 (**Annex 2**); Mauritius Aide Mémoire, May 2017 (**Annex 3**).

¹⁸ A virtually identical draft was attached to Mauritius's lobbying note of 15 June 2017: Mauritius Note Verbale No.10/2017(1197/28) to British High Commission Port Louis, 15 June 2017 (**Annex 4**).

¹⁹ General Assembly draft resolution on "Request for an advisory opinion of the International Court of Justice on the legal consequences of the separation of the Chagos Archipelago from Mauritius in 1965," 71st Session, Agenda Item 87 (A/71/L.73 of 15 June 2017; A/71/L.73/Add.1 of 22 June 2017) (**UN Dossier No. 5**).

²⁰ General Assembly, verbatim record, 71st Session, 88th Plenary Meeting, Thursday, 22 June 2017, 10 a.m. (A/71/PV.88), p. 5 (Congo) (**UN Dossier No. 6**).

²¹ *Ibid.*, p. 9 (Venezuela) (**UN Dossier No. 6**).

²² General Assembly Resolution 71/292 "Request for an advisory opinion of the International Court of Justice on the legal consequences of the separation of the Chagos Archipelago from Mauritius in 1965" (A/RES/71/292 of 22 June 2017) (**UN Dossier No. 7**).

²³ **In favour:** Algeria, Angola, Argentina, Azerbaijan, Bahamas, Bangladesh, Belarus, Belize, Benin, Bhutan, Bolivia (Plurinational State of), Botswana, Brazil, Burkina Faso, Burundi, Cabo Verde, Cameroon, Central African Republic, Chad, Comoros, Congo, Costa Rica, Côte d'Ivoire, Cuba, Cyprus, Democratic People's Republic of Korea, Democratic Republic of the Congo, Djibouti, Dominican Republic, Ecuador, Egypt, El Salvador, Equatorial Guinea, Eritrea, Ethiopia, Fiji, Gabon, Gambia, Ghana, Guatemala, Guinea, Guinea Bissau, Guyana, India, Jordan, Kenya, Kiribati, Lebanon, Lesotho, Liberia, Madagascar, Malawi, Malaysia, Mali, Marshall Islands, Mauritania, Mauritius, Mozambique, Namibia, Nauru, Nepal, Nicaragua, Niger, Nigeria, Pakistan, Papua New Guinea, Peru, Philippines, Republic of Moldova, Rwanda, Sao Tome and Principe, Saudi Arabia, Serbia, Seychelles, Sierra Leone, South Africa, South Sudan, Sudan, Swaziland, Syrian Arab Republic, Thailand, Togo, Trinidad and Tobago, Tunisia, Uganda, United Arab Emirates, United Republic of Tanzania, Uruguay, Vanuatu, Venezuela (Bolivarian Republic of), Vietnam, Yemen, Zambia, Zimbabwe.

against²⁴ and 65 abstentions²⁵. Nineteen Member States neither voted nor abstained²⁶. Thus less than half the Members of the United Nations supported the resolution; and 80 voted against or abstained.

- 1.15 A considerable number of UN Members placed on record, in the debate or in explanation of vote, their doubts and objections concerning the propriety of making the request for an advisory opinion. They included those abstaining as well as those voting against. These statements included the following:

Australia

In Australia's view, however, the vote raised a more specific question, namely, whether it is appropriate to request the International Court of Justice to render an advisory opinion on very specific issues that directly concern the rights and interests of two nations, Mauritius and the United Kingdom. On that question, Australia's long-standing position is that it is not appropriate for the advisory opinion jurisdiction of the Court to be used to determine the rights and interests of States arising in a specific context.²⁷

Canada

Canada supports the International Court of Justice and the important role it can play in the peaceful settlement of disputes. But it is a fundamental principle and key to the effectiveness of the Court's work that the settlement of contentious cases between States through the International Court of Justice requires the consent of both parties. Seeking the referral of a contentious case between States through the General Assembly's power to request an advisory opinion circumvents that fundamental principle, in our view.²⁸

²⁴ **Against:** Afghanistan, Albania, Australia, Bulgaria, Croatia, Hungary, Israel, Japan, Lithuania, Maldives, Montenegro, New Zealand, Republic of Korea, United Kingdom of Great Britain and Northern Ireland, United States of America.

²⁵ **Abstaining:** Andorra, Armenia, Austria, Bahrain, Barbados, Belgium, Bosnia and Herzegovina, Brunei Darussalam, Canada, Chile, China, Colombia, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Grenada, Iceland, Indonesia, Iraq, Ireland, Italy, Jamaica, Kazakhstan, Kuwait, Kyrgyzstan, Latvia, Liechtenstein, Luxembourg, Malta, Mexico, Micronesia (Federated States of), Mongolia, Myanmar, Netherlands, Norway, Oman, Palau, Panama, Paraguay, Poland, Portugal, Qatar, Romania, Russian Federation, Saint Kitts and Nevis, Saint Lucia, Saint Vincent and the Grenadines, Samoa, San Marino, Singapore, Slovakia, Slovenia, Solomon Islands, Spain, Sri Lanka, Sweden, Switzerland, the former Yugoslav Republic of Macedonia, Timor-Leste, Turkey, Tuvalu. (A/71/PV.88), pp. 17-18 (**UN Dossier No. 6**).

²⁶ Antigua and Barbuda, Cambodia, Dominica, Georgia, Haiti, Honduras, Iran, Laos, Libya, Monaco, Morocco, Senegal, Somalia, Suriname, Tajikistan, Tonga, Turkmenistan, Ukraine, Uzbekistan.

²⁷ General Assembly, verbatim record, 71st Session, 88th Plenary Meeting, Thursday, 22 June 2017, 10 a.m. (A/71/PV.88), p. 18 (**UN Dossier No. 6**).

²⁸ *Ibid.*, p. 20.

Croatia

At the same time, with regard to bilateral disputes between States, we believe in the proper application of international law and the use of appropriate avenues for addressing such disputes. In that connection, as the jurisprudence within the architecture of applicable international law must be stable and predictable, so must also be the ways of reaching such international recourses. It is for that reason that we shall vote against the draft resolution before us (A/71/L.73) and continue to support the pursuit of direct talks in good faith between Mauritius and the United Kingdom on all outstanding issues.²⁹

France

The situation at the heart of draft resolution A/71/L.73, submitted by the Group of African States, is a bilateral dispute, for which we can only hope for a solution. ... A sovereignty dispute between States, which is the case here, should be resolved in accordance with the principle of the concerned States' consent to court adjudication. We must all be attentive to respecting a principle that the International Court of Justice has considered to be fundamental.³⁰

Germany

In our view, the dispute between Mauritius and the United Kingdom is bilateral in character. We welcome the fact that both parties are willing to settle the issue peacefully, as provided for in the Charter of the United Nations. We note, however, that one party to the dispute has expressly not agreed to involve the International Court of Justice in this matter, which is in conformity with the Court's Statute.³¹

Israel

Israel is of the view that the resolution seeks to refer a bilateral dispute to the International Court of Justice. In our view, it is inappropriate to have recourse to the advisory opinion mechanism in order to involve the International Court of Justice in a territorial dispute that is essentially bilateral in nature. The underlying approach reflected in the resolution represents, in our view, a misuse of the advisory opinion provision under Article 96 of the Charter of the United Nations and undermines the principal distinction between the jurisdiction of the Court in contentious cases and its advisory jurisdiction — a distinction that should be maintained for the sake of the United Nations and the International Court of Justice itself.³²

²⁹ *Ibid.*, p. 16.

³⁰ *Ibid.*, pp. 16-17.

³¹ *Ibid.*, p. 18.

³² *Ibid.*, p. 21.

Mexico

My delegation abstained in the voting on resolution 71/292, because we consider that, regardless of the opinion that could be issued by the Court, the solution to this case must, in fact, be found at the bilateral level.³³

Myanmar

Myanmar has always been a steadfast advocate of decolonisation. We stand by, in good faith, the 1960 United Nations Declaration on the Granting of Independence to Colonial Countries and Peoples. However, we believe that the ongoing bilateral negotiations represent the best way to avoid confrontation and to bring a mutually accepted solution to Mauritius and the United Kingdom.³⁴

New Zealand

New Zealand is a strong supporter of the international rule of law and the peaceful settlement of international disputes through recourse to international courts and judicial mechanisms. However, we do not believe that the advisory jurisdiction of the International Court of Justice offers a useful method for clarifying the issues in this case. While advisory opinions can provide valuable guidance to the United Nations organ requesting the opinion, we do not see the jurisdiction as appropriate in this dispute.³⁵

Sweden

While issues of decolonization and the right to self-determination are of concern to the international community, bilateral disputes over sovereignty should be dealt with in accordance with article 36 of the Statute. For those reasons Sweden abstained in the voting on resolution 71/292 just adopted.³⁶

United Kingdom

Despite the terms of the draft resolution, this is not a matter of decolonization. Mauritius became independent in 1968 through mutual agreement between the Council of Ministers of Mauritius and the United Kingdom Government. In separate talks with the Council of Ministers, Mauritius had earlier accepted the detachment of the Chagos archipelago — an agreement that Mauritius continued to respect until the 1980s. The General Assembly has not discussed this matter for decades.

....

I must underline again that this is a bilateral dispute between two States, the United Kingdom and Mauritius. Both the United Kingdom and Mauritius have excluded disputes with other Commonwealth States from their acceptance of the compulsory jurisdiction of the International Court of Justice. The draft resolution is therefore a back-door route to the Court. The General Assembly is being used to cut across the

³³ *Ibid.*, p. 19.

³⁴ *Ibid.*, p. 21.

³⁵ *Ibid.*, p. 19.

³⁶ *Ibid.*, p. 19.

principle that States are not obliged to have their bilateral disputes submitted for judicial settlement without their consent. Doing so would set a dangerous precedent, and it would be an obstacle to bilateral discussions, which are the right way to resolve this dispute.³⁷

United States of America

The draft resolution before us today (A/71/L.73) seeks to place before the International Court of Justice a bilateral territorial dispute concerning sovereignty over the Chagos archipelago, which the United Kingdom administers as the British Indian Ocean Territory. By pursuing the draft resolution, Mauritius seeks to invoke the Court's advisory opinion jurisdiction not for its intended purpose but rather to circumvent the Court's lack of contentious jurisdiction over this purely bilateral matter.

Were Mauritius's request to proceed, it would undermine the Court's advisory function and circumvent the right of States to determine for themselves the means by which to peacefully settle their disputes. Any State currently engaged in efforts to resolve a bilateral dispute should vote against the draft resolution in recognition of the risk that supporting it suggests that any such dispute could be referred to the Court in this manner, without a State's consent, when the other party does not like how talks are proceeding. Establishing such a precedent is dangerous for all States Members of the United Nations. It could lead to the normalization of litigating bilateral disputes through General Assembly advisory opinion requests, even when a State directly involved has not consented to the jurisdiction of the International Court of Justice.³⁸

B. The main issues raised by the Request

1.16 In resolution 71/292, the General Assembly requested the Court to render an advisory opinion on the following two Questions:

(a) "Was the process of decolonization of Mauritius lawfully completed when Mauritius was granted independence in 1968, following the separation of the Chagos Archipelago from Mauritius and having regard to international law, including obligations reflected in General Assembly resolutions 1514 (XV) of 14 December 1960, 2066 (XX) of 16 December 1965, 2232 (XXI) of 20 December 1966 and 2357 (XXII) of 19 December 1967?";

(b) "What are the consequences under international law, including obligations reflected in the above-mentioned resolutions, arising from the continued administration by the United Kingdom of Great Britain and Northern Ireland of the Chagos Archipelago, including with respect to the inability of Mauritius to

³⁷ *Ibid.*, p. 11, p. 16.

³⁸ *Ibid.*, p. 13, p. 16.